Tuesday, April 08, 2025

Info Capsule

President
CS Dhananjay Shukla

Vice President
CS Pawan G Chandak

❖ Ministry of Electronics & IT (MeitY)

India launches first Digital Threat Report 2024 to support cybersecurity in the Banking, Financial Services and Insurance (BFSI) sector (April 07, 2025)

In a landmark initiative to strengthen cybersecurity resilience in the Banking, Financial Services, and Insurance (BFSI) sector, CERT-In (MeitY), CSIRT-Fin and SISA, a global Cybersecurity company, collaborated to launch the Digital Threat Report 2024 for the BFSI sector, a comprehensive analysis of current and emerging cyber threats and defense strategies.

For details: https://pib.gov.in/PressReleasePage.aspx?PRID=2119801

❖ DPIIT

- **Clarifications on the permissibility of issuance of bonus shares to existing non-resident shareholder(s) by Indian companies engaged in sectors prohibited for FDI. (07 April, 2025)**

As per the Consolidated FDI Policy Circular of 2020 dated 15.10.2020, as amended from time to time (FDI Policy), Indian companies are permitted to issue bonus shares to existing non-resident shareholders, subject to adherence to sectoral cap, if any.
Accordingly, the following clarification is inserted under Para 1 Annexure 3 of the FDI Policy which shall be effective from the date of issue of the applicable FEMA notifications.
"An Indian Company engaged in a sector/activity prohibited for FDI, is permitted to issue bonus shares to its pre-existing non-resident shareholder(s) provided that the shareholding pattern of the pre-existing non-resident shareholder(s) does not change pursuant to the issuance of bonus shares"
Issuance of bonus shares must comply with the applicable rules/laws/regulations/guidelines.
For details: https://dpiit.gov.in/sites/default/files/pn2_07April2025.pdf

- **Revision in eligibility criteria for Industrial Entrepreneurs memorandum (IEM) acknowledgement (02 April, 2025)**

Pursuant to the Gazette Notification S.0. 1364(E) dated 21st March 2025, issued by Ministry of Micro, Small, and Medium Enterprises (MSME), Department for Promotion of Industry and Internal Trade (DPIIT) has updated the eligibility criteria for issuance of Industrial Entrepreneur Memorandum (IEM) acknowledgment.
Revised Eligibility Criteria for IEM Acknowledgment as per the updated guidelines, enterprises meeting the following revised criteria shall be eligible for IEM acknowledgment:

- Investment in plant & machinery/equipment exceeding Rs. 125 crore, or/and
- Annual turnover exceeding Rs. 500 crore

The revised criteria shall be applicable w.e.f. 15 April, 2025.
For details: https://dpiit.gov.in/sites/default/files/pressNote_Series2025_02April2025.pdf

❖ Ministry of External Affairs

Official visit of His Highness Sheikh Hamdan Bin Mohammed Al Maktoum, Crown Prince of Dubai, Deputy Prime Minister and Minister of Defence of UAE (April 08-09, 2025)

At the invitation of Prime Minister Shri Narendra Modi, His Highness Sheikh Hamdan Bin Mohammed Al Maktoum, Crown Prince of Dubai, Deputy Prime Minister and Minister of Defence of UAE will be visiting India from 08-09 April 2025. This would be the first official visit of His Highness to India as the Crown Prince of Dubai. He will be accompanied by several Ministers, senior government officials and a high level business delegation.

On 08 - 09 April, His Highness the Crown Prince will visit Mumbai. During the visit, His Highness will also participate in a business roundtable with prominent business leaders from both sides. The interaction will strengthen India – UAE economic and commercial cooperation across traditional and futuristic areas.

Traditionally, Dubai has played an important role in India's commercial, cultural and people-to-people exchanges with the UAE. Majority of India's around 4.3 million diaspora in UAE reside and work in Dubai. The visit of His Highness the Crown Prince will further solidify the India-UAE Comprehensive Strategic Partnership and strengthen our multifaceted ties with Dubai.

For details:
https://www.mea.gov.in/press-releases.htm?dtl/39385/Official_visit_of_His_Highness_Sheikh_Hamdan_Bin_Mohammed_Al_Maktoum_Crown_Prince_of_Dubai_Deputy_Prime_Minister_and_Minister_of_Defence_of_UAE_April_

❖ Views/Public Comments sought by Regulators

IBBI invites suggestions on all Regulations notified under the Insolvency and Bankruptcy Code, 2016 with an aim to simplify, ease and reduce cost of compliance. (April, 07 2025)

Pursuant to the announcement made in Union Budget for FY 2023-24 stating that to simplify, ease and reduce cost of compliance, financial sector regulators will be requested to carry out a comprehensive review of existing regulations. For this, they will consider suggestions from public and regulated entities. Time limits to decide the applications under various regulations will also be laid down.

In furtherance of the above, suggestions/comments from public and regulated entities are invited on the Regulations especially from the perspective of simplifying, easing and reducing cost of compliance, and on grounds mentioned in regulation 7 of the IBBI (Mechanism for Issuing Regulations) Regulations, 2018. The comments may be provided online by visiting the IBBI website at - https://ibbi.gov.in/webfront/regulation_comment.php. The last date for submission of public comments is 30th June 2025.

For details: https://ibbi.gov.in/uploads/press/2315c2a229a750cbbbe18cba04b47150.pdf

❖ ***ESG Update***

Berger Paints India Limited

Project Clean to Green Treatment Plant

Recognising the substantial impact manufacturing has on global sustainability concerns, company has taken significant measures to ensure its operations are environment friendly. The Company has implemented the "War on Waste – Sanchayan" project across all its plants. This project follows the 4R principles (Reduce, Reuse, Recycle, Recreate), aiming to reduce waste at the source, recover sticky losses, reuse powder raw materials in batches through de-dusting RM bags, and recreate usable raw materials from waste. Company has established a system to monitor these processes, ensuring that no reusable material is discarded as waste.

For details: https://www.bergerpaints.com/investors/download

❖ **Ministry of Statistics & Programme Implementation**

NSO, India Unveils Digital Innovations to Strengthen Statistical System (April 07, 2025)

Ministry of Statistics and Programme Implementation (MOSPI) launched a revamped Microdata Portal during the recently held Conference of State Government Ministers, marking a significant step in enhancing data accessibility, user experience, and the integration of advanced technologies in the Official Statistical System. The new portal, which serves as a centralized repository for extensive statistical data collected from national surveys and economic census overcomes technological limitations faced by the previous portal. In collaboration with the World Bank Technology Team, MOSPI has adopted a modern, scalable technology stack that not only ensures compliance with the latest security standards but also supports a responsive design and data access mechanism. The portal can be accessed at https://microdata.gov.in/.

For details: https://pib.gov.in/PressReleasePage.aspx?PRID=2119641

❖ ***Market Watch***

Stock Market Indices as on 08.04.2025	
S & P BSE Sensex	74227.08 (+1089.18)
Nifty 50	22535.85 (+374.25)

Foreign Exchange Rates as on 08.04.2025
(https://m.rbi.org.in//scripts/ReferenceRateArchive.aspx)

INR / 1 USD	INR / 1 EUR	INR / 1 GBP	INR/ 1 JPY
85.90	94.29	109.86	0.58

❖ **Pronouncement**

03.04.2025	***M/s R. K. Transport Company v. M/s Bharat Aluminum Company Ltd. (BALCO)***	***Supreme Court***

The legislative intent behind section 34(3) of Arbitration and Conciliation Act, 1996 is to provide a limitation period of 3 calendar months and not 90 days.

In this case, the Hon'ble Supreme Court has settled an important question of law on interpretation of section 34(3) of the Arbitration and Conciliation Act, 1996(ACA). Section 34(3) of the ACA stipulates the limitation period for filing an application to set aside an arbitral award as 3 months from the date on which the party receives the arbitral award, which can be further extended by 30 days on sufficient cause being shown.

The Hon'ble court found it necessary to reiterate that the statutory language of Section 34(3) clearly stipulates the limitation period as "three months", as opposed to the condonable period as "thirty days". This difference in language unambiguously demonstrates the legislative intent that the limitation period is 3 calendar months as opposed to 90 days. Therefore, we reject the argument taken by the appellant in its written submissions that 3 months must be read as 90 days in the context of Section 34(3).

In the present case, the respondent received a signed copy of the award on 09.04.2022. Since Section 12(1) applies, this date must be excluded and the 3-month limitation period must be reckoned from 10.04.2022. This expires on 09.07.2022, which happened to be a second Saturday when the court was not working.

Therefore, the respondent's application under Section 34, which was filed on 11.07.2022, i.e., the next working day of the court, must be considered as being filed within the limitation period.

For details:

https://api.sci.gov.in/supremecourt/2024/48408/48408_2024_11_1501_60626_Judgement_03-Apr-2025.pdf

Handbook on Business Responsibility and Sustainability version 2.0

About the Book

The ICSI launched the "**Handbook on Business Responsibility and Sustainability**" to promote the integration of ESG practices in business and recognize corporate sustainability efforts. With BRSR reporting becoming mandatory for FY 2022-23, the Institute published this guide in 2023 for corporations and professionals.

Building on this initiative, the ICSI has released the second edition, '**Handbook on Business Responsibility and Sustainability Version 2.0**', reflecting best practices from companies participating in the second edition of the Awards.

Year of Publication : 2024

Price : Rs. 1000/-

Link: https://smash.icsi.edu/Scripts/ECart/Default/ItemWiseECartSearchOnlineBooks.aspx?ItemId=345

SETTING UP OF UNITS IN IFSC - A COMPREHENSIVE HANDBOOK

About the Book

The establishment of International Financial Services Centre (IFSC) symbolises the dreams and aspirations of a New and Aatma Nirbhar Bharat. Alongside enabling global businesses to setup offices in India, IFSC is providing numerous opportunities to professionals in areas ranging from finance and technology to legal and Compliances. In this regard, to guide the members , this publication provides a brief overview of the IFSC, guidelines for establishing business units in the IFSC, and the opportunities available for Company Secretaries in various arenas.

Year of Publication : 2024

Price : Rs. 200/-

Link: https://smash.icsi.edu/Scripts/ECart/Default/ItemWiseECartSearchOnlineBooks.aspx?ItemId=353